



SPONSOR: Sen. Poore & Rep. Heffernan
Sens. Cruce, Hoffner

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 93

AN ACT TO AMEND TITLE 12, TITLE 16, TITLE 21, AND TITLE 31 OF THE DELAWARE CODE RELATING TO
THIRD-PARTY DECISION MAKING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 3982, Title 12 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3982. Definitions [Effective Sept. 30, 2025].

4 For the purposes of this chapter:

5 (4) The term “last resort” includes any of the following:

6 a. Circumstances in which there is no other suitable person willing or able to serve as an agent under a
7 durable power of attorney, an agent under a power of attorney for health care, a default surrogate decision maker,
8 guardian, representative payee, or VA fiduciary.

9 b. Circumstances in which a person willing or able to serve, or already serving, as a validly appointed
10 agent ~~of~~ under a durable power of attorney, an agent appointed under a power of attorney for health care, a default
11 surrogate decision maker, representative payee, VA fiduciary, or a guardian, is available but sufficient cause has
12 been found by the court that the individual available or so acting is not suitable to serve and that the appointment
13 of the Public Guardian is in the best interest of the person who is incapacitated.

14 Section 2. Amend § 3983, Title 12 of the Delaware Code by making deletions as shown by strike through and
15 insertions as shown by underline as follows:

16 § 3983. Duties of the Public Guardian.

17 The Public Guardian:

18 (3) After evaluation of the conditions of the individual and in consideration of the established case acceptance
19 priorities, may do any of the following:

20 a. Make a recommendation as to a suitable individual who is available and willing to serve as guardian or
21 default surrogate decision maker or refer to an appropriate private, nonprofit, or other entity willing to serve as
22 guardian, representative payee, or VA fiduciary.

Section 3. Amend § 1121, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1121. Resident's rights.

(b) It is the public policy of this State that the interests of the resident must be protected by a declaration of a resident's rights, and by requiring that all facilities treat their residents in accordance with such rights, which must include the following:

(39) Each resident has the right to compliance with the resident's advance health-care directive, power of attorney, Delaware Medical Orders for Scope of Treatment, or similar document in accordance with and subject to Chapter 49 of Title 12 and 12, Chapter 49A of Title 12, Chapter 25 of this title, title, and Chapter 25A of this title.

(40) ~~If a resident is adjudicated incompetent, is determined to be incompetent by the resident's attending physician, or is unable to communicate, the resident's rights shall devolve to the resident's authorized representative, as established under any of the following:~~

~~a. An advance health-care directive.~~

~~b. A medical durable power of attorney for health-care decisions.~~

~~c. A court appointed guardian under Chapters 39 and 39A of Title 12, in accordance with the authority granted by the appointing court.~~

~~d. A surrogate appointed under Chapter 25 of this title.~~

~~e. An individual who is otherwise authorized under applicable law to make the health-care decisions being made by execution of the DMOST form on the patient's behalf under Chapter 25A of this title. [Repealed].~~

Section 4. Amend § 1122, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1122. Devolution of rights.

Where consistent with the nature of each right in § 1121 of this title, ~~all rights~~, particularly as they pertain to a resident adjudicated incompetent in accordance with state law, ~~or a resident who is found medically incapable by the resident's own attending physician, or a resident who is unable to communicate with others, shall devolve~~ State law, if the resident is determined to need a representative under federal law, or the presumption of the resident's capacity is rebutted under § 2504 of this title, all rights devolve to the resident's authorized representative, as established under any of the following:

(1) An advance health-care ~~directive~~, directive, as defined under § 2502 of this title.

(2) ~~A medical durable power of attorney for health-care decisions. [Repealed].~~

(3) A court-appointed guardian pursuant to Chapters 39 and 39A of Title 12, in accordance with the authority granted by the appointing court.

(4) A default surrogate appointed under Chapter 25 of this title.

(5) An individual who is otherwise authorized under applicable law to make the health-care decisions being made by execution of the DMOST form on the patient's behalf under Chapter 25A of this title.

(6) A sponsoring agency or representative payee, except where the facility itself is the representative payee, selected under § 205(j) of the Social Security Act (42 U.S.C. § 405(j)).

Section 5. Amend § 1145, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1145. Criminal background checks.

(b) *Definitions.* —

(2) "Authorized representative" means an individual who has the highest priority to act for the patient under law, and who has the authority to make decisions with respect to the patient's health-care preferences. The patient's authorized representative can be 1 of the following:

a. An ~~individual agent~~ designated by a patient under an advance health-care ~~directive; an agent under a medical durable power of attorney for health-care decisions.~~ directive, as defined under § 2502 of this title.

b. A guardian of the person appointed under Chapter 39 or 39A of Title 12, in accordance with the authority granted by the ~~court; a~~

c. A default surrogate ~~appointed~~ under Chapter 25 of this title.

~~e. d.~~ An individual who is otherwise authorized under applicable law to make health-care decisions on the patient's behalf, if the patient lacks decision-making capacity.

Section 6. Amend § 2503A, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2503A. Definitions.

For purposes of this chapter:

(1) "Advance health-care directive" means ~~an advance health-care directive under Chapter 25 of this title, a durable power of attorney for health-care decisions, or~~ as defined under § 2502 of this title or any individual instruction or power of attorney for health care valid in the state where such document was executed or where the individual executing such document was a resident at the time that such document was executed that appoints an agent. Said

document must have been executed by the individual authorizing the appointed agent to make decisions about the individual's health care when such individual no longer has decision-making capacity.

(12) "Patient's authorized representative" or "authorized representative" means the individual signing a DMOST form on behalf of a patient without decision-making capacity, who has the highest priority to act for the patient under law, and who has the authority to make decisions with respect to the patient's health-care preferences being made on the DMOST form such individual is executing on behalf of the patient. The health-care practitioner shall determine the individual who is the patient's authorized representative by referencing the documentation giving such individual the required authority under law. The regulations implementing this chapter shall explain the priority set by law regarding who can act as an authorized representative. Based on the documentation provided by such individual as evidence of ~~his or her~~ that individual's authority, the patient's authorized representative could be an ~~individual agent~~ designated by a patient under an advance health-care directive, ~~an agent under a medical durable power of attorney for health-care decisions~~, a guardian of the person appointed pursuant to Chapters 39 and 39A of Title 12, in accordance with the authority granted by the appointing court, a default surrogate ~~appointed~~ under Chapter 25 of this title, or an individual who is otherwise authorized under applicable law to make the health-care decisions being made by execution of the DMOST form on the patient's behalf, if the patient lacks decision-making capacity.

Section 7. Amend § 5530, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5530. Definitions [Effective Sept. 30, 2025].

(a) "Alternative decision maker" is a person identified to make decisions for an individual in that individual's best interest. In the absence of an assigned legal guardian of person or applicable advance health-care ~~directive, power of attorney,~~ directive, as defined under § 2502 of this title, or similar legal instrument, a default surrogate may be determined under § 2512 of this title.

~~(c) Individuals specified in this subsection are disqualified from acting as an alternate decision maker if the person receiving services from DDDS has filed a petition for a protection from abuse order against the individual or if the individual is the subject of a civil or criminal order prohibiting contact with the person receiving services from DDDS.~~
[Repealed].

Section 8. Amend § 5531, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5531. Persons without legal guardians.

(a) Consent to perform elective surgery upon a person who is receiving services from the Division of Developmental Disabilities Services (“DDDS”) may be given by the Division Director or such Director’s designee if all of the following circumstances apply:

(1) The person receiving residential services cannot give ~~his or her own~~ informed ~~consent~~; consent.

(2) The person receiving services has no alternative decision ~~maker~~; and maker.

(3) The person receiving residential services has no legal guardian of the person, or applicable ~~advanced~~ advance health-care ~~directive, power of attorney, directive, as defined under § 2502 of this title, or similar legal~~ instrument.

Section 9. Amend § 2718, Title 21 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2718. Information on licenses.

(c) The Division of Motor Vehicles shall provide a method for permitting a person applying for a license or identification card, or for renewal thereof, to have designated thereon that such person has a medical condition which may require special attention.

(5) For the purposes of this subsection “medical condition” ~~shall include~~ includes the execution of a pre-hospital ~~advanced~~ advance care directive ~~pursuant to § 9706(h) of Title 16, under Chapter 25 of Title 16 or a Delaware~~ Medical Orders for Scope of Treatment under Chapter 25A of Title 16, and those orders from other states, which have become effective under Chapter 25A of Title 16.

Section 10. Amend § 3912, Title 31 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3912. Confidentiality of records.

(a) (1) Records and information in the possession of the Department or anyone providing service to an alleged victim and the alleged victim’s relatives is deemed confidential, and may be disclosed only under the following conditions:

b. With the consent of the recipient of the services, if the recipient has legal capacity. If the recipient lacks capacity, the recipient’s ~~power of attorney~~ agent under Chapters 49 or 49A of Title 12, an agent or default surrogate under Chapter 25 of Title 16, or legal guardian may consent for the recipient.

Section 11. This Act takes effect on September 30, 2025.

SYNOPSIS

This Act updates the terminology used to describe or citations used to reference those who make financial or health-care decisions on behalf of a principal or individual, including when that principal or individual lacks capacity. This

Act takes effect on September 30, 2025, to coincide with when the Delaware Uniform Health-Care Decisions Act of 2023 (DUHCDA 2023) takes effect.

Section 1 of this Act amends § 3982 of Title 12 by:

(1) Removing the phrase “durable power of attorney for health-care decisions” and instead citing to the definition of “advance health-care directive” under DUHCDA 2023. A durable power of attorney for health-care decisions, or other similar variations on that phrase, are synonyms for a power of attorney for health care. A power of attorney for health care is included in the definition of advance health-care directive under DUHCDA 2023.

For shorthand, elsewhere in this Synopsis this change will be referred to as “citing to the DUHCDA 2023 to remove synonyms.”

(2) Changing "surrogate" to "default surrogate" to align with the new definitions of "surrogate" and "default surrogate" under DUHCDA 2023.

For shorthand, elsewhere in this Synopsis this change will be referred to as “aligning the term ‘surrogate’ with the DUHCDA 2023”.

(3) Added reference to an agent under a durable power of attorney to § 3983(4)a. since it is in § 3983(4)b. and those paragraphs should mirror each other, as paragraph (4)a. handles a situation when there is no decision maker willing or able to serve and paragraph (4)b. addresses a situation where a decision maker is determined unsuitable.

Section 2 of this Act amends § 3983 of Title 12 by aligning the term ‘surrogate’ with the DUHCDA 2023.

Section 3 of this Act amends § 1121 of Title 16 by:

(1) Completing the list of internal citations.

(2) Repealing § 1121(b)(40) because § 1122 defines the decision makers to whom third-party decision making passes when an individual lacks capacity to make decisions. Additionally, § 1121 is where resident rights are listed, not the rights of third parties.

Section 4 of this Act revises § 1122 of Title 16 by:

(1) Revising the description of legal standards for when decision making authority passes to a third party under the processes listed, including deleting that a standard is when a resident is "unable to communicate with others" and adding a reference to federal law since a representative payee under § 205(j) of the Social Security Act is included in the list.

(2) Citing to the DUHCDA 2023 to remove synonyms.

(3) Aligning the term ‘surrogate’ with the DUHCDA 2023.

Section 5 of this Act amends § 1145 of Title 16 by:

(1) Citing to the DUHCDA 2023 to remove synonyms.

(2) Aligning the term ‘surrogate’ with the DUHCDA 2023.

Section 6 of this Act amends § 2503A of Title 16 by:

(1) Citing to the DUHCDA 2023 to remove synonyms.

(2) Aligning the term ‘surrogate’ with the DUHCDA 2023.

Section 7 of this Act amends § 5530 of Title 16 by:

(1) Citing to the DUHCDA 2023 to remove synonyms.

(2) Repealing subsection (e) because it refers to a list of individuals that was removed by SB 309 (GA 152) in favor of citing directly to DUHCDA 2023.

Section 8 of this Act amends § 5531 of Title 16 by citing to the DUHCDA 2023 to remove synonyms.

Section 9 of this Act amends § 2718 of Title 21 by:

(1) Correcting the word “advanced” to “advance” in “advance care directive”.

(2) Listing the advance planning documents referenced in the citation to § 9706(h) of Title 16. Section 9706(h) allows the promulgation of regulations related to EMS provider compliance with identified advance planning documents. It is not the section that establishes or defines the advance planning documents.

Section 10 of this Act amends § 3912 of Title 31 by changing the term “power of attorney” to “agent” because an agent is the actor whereas the power of attorney is the document or grant of authority to act as agent.

Section 11 of this Act is an effective date. This Act takes effect on September 30, 2025.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Poore